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Provision of November 14, 2024

Register of provisions

n. 700 of November 14, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, on the protection of natural persons
with regard to the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018 n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISE

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a complaint dated September 12, 2023, regularized on
September 22, 2023, Ms. XX complained of having
received three unwanted emails and one SMS; in
particular, these communications, which appeared
to be addressed to other individuals and referred
to the degree course attended by her,
contained the promotion of a tutoring service offered by the website lezioniprivate.eu.
The complainant stated that she could not

exercise her rights since there was no information on the
website regarding the data controller.

On January 24, 2024, the Office accessed the
site verifying the lack of indications regarding the
name of the data controller; on this
site, there were several advertisements offering
tutoring services; at the "contacts" link, there was
only a form requesting the entry of name, surname, email, and phone with a
"consent to data processing" checkbox to be checked.

The published privacy notice was entirely
generic, containing no identifying information
about the controller but only an email address, and was devoid of any
description of the methods of
processing actually carried out. For example: there

were listed several legal bases in a completely hypothetical manner without specifying in which specific case each specific legal basis applied; there was no specific indication regarding the retention periods of the data in relation to the different purposes; in several cases, it referred to the possibility for the data subject to express consent but, as mentioned, the only request for consent was present in the contact form in a completely generic manner and detached from the respective purpose. The site also contained another data collection form to obtain registration even though there was no clarification regarding the purpose (as well as the actual utility) of such registration; here, in addition to the aforementioned personal and contact data, it also requested the entry of the tax code, physical address, and date of birth. Moreover, within the mentioned notice, there was a reference to a not further identified "Indira platform" which was qualified - without further explanations - as the data processor with respect to "Indira users owning a site, registered on this platform."

Since there was no indication on the site, and in the same unwanted communications received by the complainant, regarding who the data controller was, the Office conducted preliminary investigations identifying, through the hosting provider, Mr. Mario Ionà as the registrant of said site.

Mr. Ionà responded to the request for information via certified email on March 17, 2024, confirming the ownership of the site. Regarding the facts subject to the complaint, the controller limited himself to stating, in a brief, entirely generic, and undocumented communication, his non-involvement in sending the emails as the site would have been the subject of an unspecified hacker attack, adding that

"Probably they spammed the domain to make it fall and bombard it with accesses; in fact, it was down over 30 times in the following 10 days." On the same date, Mr. Ionà added that, through research, he would have learned that the complainant publishes ads to offer online tutoring, so

"they surely found the email online through artificial intelligence and associated it.

Since she is a competing girl, she must have clicked the scam email."

Nothing was stated regarding the sending of the SMS.

Following these statements, the Office requested the complainant to produce the emails subject to the complaint in digital format complete with the relevant header, verifying that some of them were sent from the address XX.

As of April 19, 2024, further checks were carried out, finding that the site lezioniprivate.eu and the site <https://>

www.indiraproject.com/ were unavailable.

However, regarding this Indira Project, a Facebook page was viewable

(<https://www.facebook.com/indiraprojectwebsite/about>) where services were advertised.

****Creation of Websites and Anti-Piracy Consulting****

The mobile number listed as a contact on this Facebook page was the same number as Mr. Ionà's (also indicated as such by the hosting provider of the site lezioniprivate.eu) and, in fact, reference was made to XX, which is a sole proprietorship registered by Mr. Mario Ionà, having as its corporate purpose the provision of educational services.

In order to verify the alleged lack of involvement in sending the emails, the examination of the collected documentation allowed the Office to ascertain that the email messages received by the complainant on 02/09/2023 and 03/09/2023 were sent from the address "XX" with the main recipient being XX and a hidden recipient "XX". The email message received by the complainant on 19/09/2023 was sent from the address "XX" with the main recipient "XX" and a hidden recipient "XX". Furthermore, the authenticity of the emails was confirmed, as the sender addresses did not appear to have been subject to masking.

It is noted that the email address XX, based on what was declared by the hosting provider of the domain lezioniprivate.eu, is indicated by Mr. Ionà as his own email address. Additionally, this "Indira platform," as mentioned, is also referenced in the generic privacy notice published on the website lezioniprivate.eu, and this service is also attributable to Mr. Mario Ionà.

****2. THE CONTESTATION OF VIOLATIONS****

In this context, the Office contested the violations identified in the initiation of the procedure dated August 22, 2024, prot. n. 100174/24, notified via certified email. Here, the motivations expressed in the aforementioned act are fully referenced, and Mr. Mario Ionà was contested for violating Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code for having sent three emails and one SMS with promotional content to the complainant in the absence of a suitable legal basis and without demonstrating the acquisition of appropriate consent for the processing of data for promotional purposes.

Moreover, a violation of Article 5, paragraph 1, letter a) and Article 13 of the Regulation was also deemed to be integrated due to the total lack of information on the website lezioniprivate.eu, as there were no sufficient indications regarding the methods and purposes of data processing, which were collected through two different forms, lacking even the identification of the data controller.

Finally, since the data controller invoked in his defense an unspecified hacker attack, it would have been necessary to notify the Authority of the occurrence of a personal data breach; as no notification was received, the violation of Article 33 of the Regulation was also contested.

****3. THE DEFENSE OF THE DATA CONTROLLER****

In a terse communication received via certified email on August 22, 2024, Mr. Ionà did not provide useful elements to justify the contested facts and limited himself to briefly stating the following: "I can only point out that if I had wanted to send advertising emails, I certainly would not have chosen the contact of a competitor. I admit that regarding the hacker attacks, I did not report them as the person who managed the site has not been dealing with it for a year; in fact, it is always down. The contact of the girl in question was taken from the internet by an artificial intelligence. Being related to my training activity. I want to clarify that no user data has been saved in the database and that I have no intention of proceeding with the training activity [...] I admit, however, that I am at fault for the lack of information regarding privacy on the site. I also want to reiterate my estrangement from the facts," adding finally that "the site in question was poorly managed and therefore closed."

****4. LEGAL ASSESSMENTS****

****4.1 Sending Promotional Communications Without Consent****

The described facts and the confused and unproven defensive arguments of the data controller acknowledge that the complainant received three emails and one SMS with promotional content without ever having provided suitable consent and in the absence of any other adequate legal basis. In

this regard, it is not relevant to ascertain whether the promotional purpose was genuinely intended by the data controller or was merely a side effect of the alleged hacker attack (regarding which Mr. Ionà did not provide, during the investigation, any documentation, including technical, that could prove its occurrence), since in both cases the complainant was subject to processing lacking a legal basis due to the fault of the data controller himself.

From the checks carried out, Mr. Mario Ionà's involvement in sending the emails, which were sent from the domain indiraproject.com and addressed to the email address XX (in addition to the complainant in blind copy), is nonetheless confirmed, references, as mentioned, both attributable to Mr. Ionà.

Finally, it is recalled that the data controller did not provide any clarification regarding the sending of the SMS to the complainant's mobile number.

****4.2 Transparency****

The website lezioniprivate.eu, while not publishing personal data, requested its release through the completion of two different forms for which, as described above, there was no information regarding the methods and purposes of the processing, lacking even the name and VAT number of the data controller, as also required by the regulations concerning businesses (Article 35, paragraph 1, dPR October 26, 1972, n. 633 and Article 2250 of the Civil Code). This circumstance was also confirmed by Mr.

Ionà, in the defensive memorandum dated August 22, 2024, declared that he had discontinued the entrepreneurial initiative and closed the website lezioniprivate.eu because it was "poorly managed." In this regard, it is noted that the Office verified, on October 7, 2024, that the website lezioniprivate.eu was no longer accessible. However, from the checks conducted, it emerged that the website lezioniprivate.eu is still reachable online without any corrective modifications; it remains devoid of indications regarding the data controller and any information related to the methods and purposes of the processing itself; the data collection forms are still present, although it was not possible to ascertain their actual functioning.

4.3 Violation of Personal Data

From the confused account provided by the data controller, the website allegedly suffered an unspecified hacker attack, for which, however, no documentation has been provided. From the statements made, it is only learned that the event was interrupted and that, in any case, the website would no longer be active (a statement, as mentioned, disregarded by subsequent checks). Considering that the statements made to the Authority during the investigation are given in the awareness of the consequences regarding false statements to the Guarantor (as provided by the combined provisions of Articles 157 and 168 of the Code) and thus taking into account the justification provided by the data controller, it is nonetheless believed that this argument is insufficient to remove the subjective element of the conduct, since the sending of unwanted promotional messages—which would still be an effect of the malicious event—is nonetheless due to the negligence of the controller, who has not demonstrated having adopted adequate measures to carry out the described activity. Even the generic reference to an unidentified third party, who allegedly mishandled the management of the website, is not sufficient to relieve the controller of the fault for what occurred, as it is solely the controller who has the burden of choosing a data processor that provides adequate guarantees and to oversee the correct application of the instructions given. This is even more so considering the professional profile of Mr. Ionà, who, as mentioned, also offered IT consulting and security services. In any case, the violation of personal data should have been notified to the Guarantor, and any detrimental consequences of such an event should have been subject to careful examination and resolution, beyond the alleged, but not implemented, cessation of activity.

For the reasons extensively illustrated, ultimately, the responsibility of Mario Ionà regarding the contested violations must be confirmed through the communication of the initiation of the procedure pursuant to Article 166, paragraph 5 of the Code.

5. CONCLUSIONS

Based on the above, the responsibility of Mario Ionà regarding the following violations is deemed established:

a) Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code, for sending unwanted promotional communications in the absence of consent from the data subject and in the absence of any other legal basis;

b) Article 5, paragraph 1, letter a) and Article 13 of the Regulation, for the total absence of transparency in the processing carried out through the website lezioniprivate.eu;

c) Article 33 of the Regulation, for the failure to notify the Guarantor of the personal data breach;

Thus, having established the unlawfulness of the conduct of Mario Ionà concerning the processing examined, and considering that the website is still reachable and presents the same unlawful elements that are the subject of contestation, it is necessary to:

- impose on Mario Ionà, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any processing of data that may have been collected through the completion of the forms present on the website lezioniprivate.eu, since such processing, carried out in the described manner, would not be lawful;

- adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Mario Ionà of the administrative pecuniary sanction provided for by Article 58, paragraph 2, letter i) and Article 83, paragraphs 3 and 5, of the Regulation.

By virtue of what is provided by Article 154-bis, paragraph 3 of the Code, the present provision is published on the Authority's website (see also Article 37 of the internal regulation of the Guarantor No. 1/2019).

Finally, it is noted that the conditions set forth in Article 17 of the Guarantor's Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, apply for the annotation of the violations identified herein in the internal register of the Authority, as provided by Article 57, paragraph 1, letter u) of the Regulation.

6. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above representation, various provisions of the Regulation and the Code have been violated in relation to the processing carried out by Mario Ionà through the website lezioniprivate.eu, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or to related processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation with...

consequential application of the only sanction provided for by Article 83, paragraph 5, of the Regulation. For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for companies, at 4% of the worldwide annual turnover of the previous financial year if higher, specifies the methods for quantifying the aforementioned sanction, which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the relevant amount. In fulfillment of this provision, hypothesized, based on the information available from the income documentation produced by the data controller, the occurrence of the first hypothesis provided for by the aforementioned Article 83, paragraph 5, and thus quantified at 20 million euros the maximum penalty applicable, the following aggravating circumstances must be considered:

1. the potential number of subjects involved since the website, still accessible online as of October 7, 2024, presents forms for collecting personal data without any information regarding the consequences of such processing, also taking into account the alleged hacker attack that occurred at the time of the complaint and the absence of corrective measures by the data controller (Article 83, paragraph 2, letter a), of the Regulation);

2. the severely negligent nature of the violation, since the data controller has been unable to document the origin of the complainant's data and the reasons for what happened, except through mere hypotheses, demonstrating serious negligence in complying with the rules for the protection of personal data, negligence also demonstrated by the total lack of information on the website and the

current online presence of the same despite the declared closure (Article 83, paragraph 2, letter b), of the Regulation);

3. the degree of responsibility of the data controller, who has demonstrated a total inability to control the security of the processing, also showing disregard for the implementation of corrective measures (Article 83, paragraph 2, letter d), of the Regulation);

4. the degree of cooperation with the Supervisory Authority, which has been completely insufficient since, as described, Mr. Ionà provided terse, unclear, and undocumented responses (Article 83, paragraph 2, letter f), of the Regulation).

As mitigating factors, it is considered possible to take into account:

1. limited to the sending of promotional messages without consent, the number of subjects involved since, as far as is evident from the documents, such conduct would have concerned only the complainant (Article 83, paragraph 2, letter a) of the Regulation);

2. the level of damage caused, consisting merely of the disturbance of receiving unwanted communications without being able to find a contact for the data controller to address (Article 83, paragraph 2, letter a) of the Regulation);

3. the absence of relevant previous violations committed by the data controller (Article 83, paragraph 2, letter e), of the Regulation);

4. the economic and organizational dimensions of the data controller, who operates as a small entrepreneur, taking into account the income data declared by Mr. Ionà in the last fiscal year (Article 83, paragraph 2, letter k), of the Regulation).

In this context, it is believed that - based on the overall elements mentioned above - an administrative sanction of a payment of 2,000.00 euros (two thousand/00) should be applied to Mario Ionà, equivalent to 0.01% of the maximum penalty of 20 million euros. The maximum penalty is identified with reference to the provisions of Article 83, paragraph 5, of the Regulation, considering that 4% of Mario Ionà's turnover, based on the data reported in the last tax return, is less than 20 million euros.

In this context, it is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the internal regulation of the Guarantor No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should be carried out. This is in consideration of the risk elements for the rights and freedoms of the data subjects that are in no way mitigated by the data controller despite the initiation of the procedure.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares the processing described in the terms of the motivation carried out by Mario Ionà, based in Montepaone (CZ), VAT number 03094170796 and tax code XX, unlawful; consequently:

a) pursuant to Article 58, paragraph 2, letter f), imposes on Mario Ionà the prohibition of processing any data that may have been collected through the completion of the forms present on the website lezioniprivate.eu in the absence of adequate corrective measures;

b) pursuant to Article 157 of the Code, orders Mario Ionà to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the measure imposed in letter a); any failure to comply with the provisions of this letter may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Mario Ionà to pay the sum of 2,000.00 euros (two thousand/00) as an administrative pecuniary sanction for the violations indicated in the motivation; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has...

Authority to resolve the dispute by

payment, within 30 days, of an amount equal to half of the imposed sanction.

****ORDERS****

the aforementioned holder, in case of failure to resolve the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €2,000.00 (two thousand/00), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

****DISPOSES****

a) pursuant to Articles 154-bis of the Code and 37 of the internal regulation of the Authority No. 1/2019, the publication of this provision on the Authority's website;

b) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the internal regulation of the Authority No. 1/2019, the publication of the injunction order on the Authority's website;

c) pursuant to Article 17 of the internal regulation of the Authority No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, November 14, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei